

AFFIDAVIT OF ANDREW J. PIGORS IN SUPPORT OF PETITION FOR SUPERINTENDING CONTROL

STATE OF MICHIGAN
IN THE SUPREME COURT

MSC Case No. ____ (To Be Assigned)

Lower Court Case Nos.:

14th Judicial Circuit Court: 2024-001507-DC; 2023-5907-PP

Court of Appeals: 366810 (Pending)

ANDREW J. PIGORS,
Petitioner (Pro Se),

v.

THE 14TH JUDICIAL CIRCUIT COURT,
FAMILY DIVISION, MUSKEGON COUNTY
(HON. JENNY L. McNEILL, Presiding),
Respondent,

and

EMILY A. WATSON,
Real Party in Interest.

AFFIDAVIT

STATE OF MICHIGAN)
) ss.
COUNTY OF MUSKEGON)

I, Andrew J. Pigors, being first duly sworn, depose and state as follows:

I. IDENTITY AND COMPETENCE

1. I am the Petitioner in this action. I am over the age of eighteen (18), am competent to testify, and make this Affidavit based on my personal knowledge, my review of court records, and documents in my possession.
2. I reside at 1977 Whitehall Road, Lot 17, North Muskegon, Michigan 49445. I am a resident of Muskegon County.
3. I am the biological father of L.D.W., a minor male child born November 9, 2022. No court has ever found me to be an unfit parent or to pose any danger to my son.

II. CASE HISTORY

4. Emily A. Watson and I are the parents of L.D.W. Our custody dispute is pending as Case No. 2024-001507-DC before the 14th Judicial Circuit Court, Family Division, Muskegon County, Michigan.
5. A related Personal Protection Order case, No. 2023-5907-PP, is also pending before the 14th Circuit Court. Both cases are assigned to Hon. Jenny L. McNeill.
6. I have filed an appeal with the Michigan Court of Appeals, No. 366810, which remains pending as of the date of this Affidavit.
7. I appear pro se in all proceedings. I am not an attorney. I have been unable to obtain legal representation due to my financial circumstances, which have been directly caused by the lower court's actions as described herein.
8. Emily A. Watson's former attorney, Jennifer Barnes (P55406) of Barnes Law Firm PLLC, 880 Jefferson St, Ste B, Muskegon, MI 49440, has withdrawn from representation. Upon information and belief, Watson is currently unrepresented or has retained new counsel not yet known to Petitioner.

III. SEPARATION FROM MY SON

9. The following is the accurate timeline of custody and separation in this case:

- a. On or about December 3, 2023, a Personal Protection Order was initiated against me.
- b. From approximately March 26 through May 5, 2024 (40 days), Watson withheld L.D.W. from me -- the first period of complete withholding.
- c. On May 5, 2024, I obtained an ex parte temporary custody order establishing 50/50 equal parenting time. From May 5, 2024 through July 17, 2025 -- a period of approximately 438 days -- I maintained successful 50/50 parenting time with L.D.W. under this temporary order. The arrangement worked. L.D.W. thrived. Shared custody was both workable and in the child's best interest.
- d. On July 17, 2025, Watson's objection to the temporary order was granted. The ex parte order was overturned, and Watson was awarded 100% custody -- without an evidentiary hearing and without findings on the MCL 722.23 best interest factors.
- e. Since July 29, 2025, Watson has again withheld L.D.W. from me entirely, under a false and exaggerated ex parte suspension of parenting time. As of the date of this Affidavit, this current separation has lasted approximately 229 consecutive days and is ongoing. This is not a reduction in parenting time -- it is a complete and total severance of the parent-child relationship.
- f. During this current withholding period, Watson removed L.D.W. from the country entirely from October 20 through November 15, 2025 -- with the trial court's permission -- while simultaneously filing a show cause motion against me for an alleged verbal exchange at a parenting time exchange, for which no evidence was presented.
- g. In total, I have been denied contact with my son for 269 days across two separate withholding periods (40 days + 229 days), despite 438 days of demonstrated successful shared custody between those periods.

- 10. The denial of parenting time is not the result of a court order finding me unfit. It is the result of Emily A. Watson's unilateral refusal to comply with parenting time provisions, combined with Judge McNeill's refusal to enforce those provisions. The fact that 50/50 parenting time functioned successfully for over fourteen months under the temporary order demonstrates that shared custody was both workable and in the child's best interest -- making the trial court's subsequent revocation of this

arrangement, without evidentiary hearing, all the more arbitrary.

11. Despite documented violations of parenting time by Watson, Judge McNeill has taken zero enforcement actions under the mandatory provisions of MCL 552.644. Not a single compensatory parenting time session has been ordered. Not a single fine has been imposed. Not a single contempt finding has been made against Watson for interfering with parenting time.

IV. INCARCERATION AND CONTEMPT

12. I was held in contempt of court and incarcerated for a total of 59 days. The contempt proceedings were conducted without adequate procedural protections.

13. During the contempt proceedings:

- I was not provided with counsel, despite the fact that I faced -- and received -- actual incarceration;
- Purge conditions were set that I could not satisfy due to my financial circumstances;
- The court did not conduct an ability-to-pay hearing before imposing financial purge conditions, as required by *Turner v. Rogers*, 564 U.S. 431 (2011);
- The contempt was punitive in nature, not coercive -- the purge conditions were beyond my ability to meet, and the court was aware of this.

13a. The Show Cause #5 hearing, which resulted in my first incarceration (14 days commencing November 15, 2025), was conducted as a remote hearing. During this hearing:

a. Judge McNeill ordered the stenographer to mute my microphone three (3) separate times while I was attempting to speak in my own defense;

b. I attempted to inform the court that I had filed a police report documenting my son L.D.W.'s poor physical condition at a parenting time exchange -- evidence directly relevant to the show cause allegations and to my defense. Judge McNeill ordered my microphone muted each time I tried to present this information;

c. My appointed attorney, Mandi Martini, sat silently throughout the entire hearing. She did not object to the muting of my microphone. She did not object to the exclusion of the police report. She did not speak on my behalf at any point;

d. Prior to the hearing, Martini sent me a communication stating: "you will not interrupt . . . Judge McNeil is not in a good mood . . . you do not want to spend the next week in jail on a contempt charge for speaking out in court." My own attorney threatened me with additional incarceration for exercising my right to speak in my own defense;

e. The prosecutor handling Show Cause #5 privately admitted to Martini that there was "nothing substantive in the motion" -- yet the court proceeded to jail me for 14 days;

f. The affidavit supporting Show Cause #5 contained a blank page (page 27) -- the filing lacked complete factual allegations, yet the court incarcerated me on its basis;

g. Watson filed Show Cause #5 contemporaneously with removing L.D.W. from the country (October 20-November 15, 2025, with the court's permission), suggesting the show cause served as a tactical cover for the international removal of my son without my consent.

13b. Separately, Watson's ex parte filings attributed to Officer Ella Randall (Norton Shores PD, Incident #NS2505044) the claim that my behavior appeared to be the result of "meth use." I filed a complaint with the police department, and Officer Randall confirmed that the "meth use" statement originated from Emily Watson herself -- not from any independent police observation. Watson's filings falsely presented her own accusation as the professional opinion of a law enforcement officer. When I raised this misattribution before Judge McNeill, the court stated: "quit nitpicking" -- refusing to address a material misrepresentation in a sworn filing that formed the basis for suspending my parental rights.

14. The contrast in how the court has exercised its contempt power is stark: I was jailed for 59 days, while Watson's documented parenting time violations have resulted in zero consequences whatsoever.

V. ECONOMIC DEVASTATION

15. As a direct and proximate result of my incarceration and the lower court's actions, I suffered the following economic consequences:

Consequence	Detail
Jobs Lost	Two (2) jobs lost, including USPS employment
Homes Lost	Two (2) or more homes lost -- [ANDREW_REQUIRE
Total Documented Economic Damages	An estimated \$82,250+
Monthly Child Support Imposed	\$1,056.60/month (imposed without adequate hea

16. Each of these losses was caused directly by my incarceration on contempt, which I could not purge because the conditions were beyond my financial ability. The lower court's contempt power was the instrument of my economic destruction.

VI. EX PARTE PROCEEDINGS AND DENIAL OF DUE PROCESS

17. Based on my review of the court docket, a substantial number of proceedings in my case were conducted ex parte -- without providing me notice or an opportunity to participate. Orders were entered affecting my parenting time, financial obligations, and custody rights without affording me any opportunity to be heard.
18. The following specific ex parte proceedings occurred without proper notice to me:
 - December 4, 2023: Personal Protection Order (Case No. 2023-5907-PP) filed and granted on the same day, ex parte, without notice to me and without an evidentiary hearing;
 - July 17, 2025: Ex parte order overturning my established 50/50 custody arrangement (after 438 days of successful shared custody), granting Watson 100% custody without evidentiary hearing;
 - July 29, 2025: Ex parte suspension of all parenting time based on Watson's false and exaggerated allegations, without hearing or notice;
 - October 20, 2025: Court granted Watson permission to remove L.D.W. from the country without my knowledge or consent;
 - Multiple additional orders modifying child support, parenting time, and custody terms were entered without providing me notice or an opportunity to respond.

VII. DISQUALIFICATION MOTION AND \$250 BOND BARRIER

19. I filed a motion for the disqualification of Judge McNeill under MCR 2.003, based on the pattern of bias documented in this Affidavit and in my Judicial Tenure Commission Complaint.
20. Judge McNeill imposed a \$250 bond requirement on the disqualification motion. I am indigent. I have lost two (2) jobs and two homes as a direct result of the court's own actions. I cannot afford \$250.

21. The \$250 bond effectively prevents me from exercising my right to challenge Judge McNeill's bias. The judge whose bias I seek to challenge is the same judge who imposed the financial barrier preventing the challenge. There is no recourse within the lower court.

VIII. HARM TO L.D.W.

22. L.D.W. is a male child who was two years old at the time the first withholding period began. He is now three years old. The 269 total days of enforced separation -- including the current 229 consecutive days -- encompass critical developmental stages that are not recoverable. Notably, the 438 days of successful 50/50 custody between the withholding periods demonstrate that L.D.W. had a functioning relationship with both parents, which the trial court's actions destroyed.
23. Research establishes that children who are involuntarily separated from a parent during early developmental years experience:
- Anxiety and depression;
 - Attachment disorders;
 - Identity confusion;
 - Difficulty forming healthy relationships;
 - Academic and behavioral problems.
24. Every day that passes without intervention deepens this harm. L.D.W.'s childhood developmental stages are not recoverable. The damage already done by 229 consecutive days of complete separation -- following a 40-day earlier withholding period -- may take years to repair, if it can be repaired at all. The regression from 438 days of successful shared custody to total severance compounds the psychological trauma.

IX. EFFORTS TO OBTAIN RELIEF THROUGH NORMAL CHANNELS

25. I have exhausted every available remedy within the lower court and the appellate system:

Remedy Pursued	Result
Motions to enforce parenting time	Denied or ignored without hearing

Objections to ex parte proceedings	Overruled
Motion for disqualification (MCR 2.003)	Blocked by \$250 bond I cannot afford
Court of Appeals appeal (No. 366810)	Pending -- no emergency relief available
JTC Complaint against Judge McNeill	Filed -- addresses judicial conduct only
This MSC Petition for Superintending Control	Filed herewith -- broadest remedy

26. None of these remedies, individually or collectively, can provide the comprehensive relief that is needed. Only superintending control can address the totality of the lower court's failure.

X. WHY SUPERINTENDING CONTROL IS NECESSARY

27. I am not asking this Court to decide custody. I am not asking this Court to act as a trial court. I am asking this Court to exercise its constitutional authority under Const 1963, art 6, Sec. 4, to ensure that the lower court functions as a court -- with impartiality, due process, and compliance with mandatory statutes.

28. The lower court's handling of my case has been characterized by:

- A biased judge who cannot be disqualified because she imposed a financial barrier to disqualification;
- Mandatory statutes (MCL 552.644) that are being ignored;
- Due process that is being denied;
- Contempt power that is being abused;
- A child who is being separated from a fit parent for 229 consecutive days -- after 438 days of successful shared custody -- without any legal basis.

29. This is precisely the kind of systemic judicial failure that the Constitution's superintending control provision was designed to address.

30. I respectfully request that this Court assume superintending control over Case Nos. 2024-001507-DC and 2023-5907-PP, remove Judge McNeill, reassign the case, order emergency parenting time, vacate unconstitutional orders, and establish oversight to ensure lawful proceedings going forward.

OATH AND SIGNATURE

I, Andrew J. Pigors, being duly sworn, state that the facts set forth in this Affidavit are true and correct to the best of my knowledge, information, and belief. I understand that making a false

statement in this Affidavit is punishable as a criminal offense under the laws of the State of Michigan.

Date: _

Andrew J. Pigors, Affiant

1977 Whitehall Road, Lot 17

North Muskegon, MI 49445

Telephone: (231) 903-5690

Email: andrewjpigors@gmail.com

NOTARY ACKNOWLEDGMENT

[NOTARY]

STATE OF MICHIGAN

COUNTY OF MUSKEGON

On this \\\ day of \\\, 20\\, before me, the undersigned Notary Public in and for said County and State, personally appeared Andrew J. Pigors, known to me (or proved to me on the basis of satisfactory evidence) to be the person whose name is subscribed to the within instrument, and acknowledged to me that he executed the same in his authorized capacity, and that by his signature on the instrument, the person, or the entity upon behalf of which the person acted, executed the instrument.

WITNESS my hand and official seal.

Notary Public, State of Michigan

County of Muskegon

My Commission Expires: \\\

[NOTARY SEAL]